

RAW MATERIAL SUPPLY AGREEMENT

THIS AGREEMENT is made on 1 March 2024 BETWEEN:

- (1) MWANGI FOODS LIMITED, a company incorporated in Kenya (Company No. C.12/2011) whose registered office is at Enterprise Road, Industrial Area, Nairobi ("the Buyer"); and
- (2) KABRAS SUGAR LIMITED, a company incorporated in Kenya whose registered office is at Malava, Kakamega ("the Supplier").

1. DEFINITIONS AND INTERPRETATION

- 1.1 "Goods" means refined white sugar meeting KEBS KS EAS 4.
- 1.2 "Delivery Point" means the Buyer premises at Industrial Area.

2. TERM

- 2.1 This Agreement commences on 1 March 2024 (the Effective Date) and expires on 28 February 2026 unless terminated earlier.
- 2.2 This Agreement shall renew automatically for successive periods of twelve (12) months unless either party gives ninety (90) days written notice prior to expiry.

3. PRICE AND PAYMENT

- 3.1 The total contract value is KES 2,500,000 exclusive of VAT.
- 3.2 The Buyer shall pay each invoice within seventy-five (75) days.

4. GOVERNING LAW

- 4.1 This Agreement is governed by the laws of Kenya and the parties submit to the exclusive jurisdiction of the courts of Kenya.

5. STAMP DUTY

- 5.1 Stamp duty payable under the Stamp Duty Act (Cap 480) shall be borne by the Supplier.

SIGNED for and on behalf of MWANGI FOODS LIMITED

Name: Signature:

SIGNED for and on behalf of KABRAS SUGAR LIMITED

Name: Signature:

